



DEPARTMENT OF EDUCATION

Colorado State Board of Education

RULES FOR THE ADMINISTRATION OF THE INSTRUCTION OF CARDIOPULMONARY RESUSCITATION IN PUBLIC SCHOOLS GRANT PROGRAM

1 CCR 301-96

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

Authority: Article IX, Section 1, Colorado Constitution. 22-2-106(1)(a) and (c); 22-2-107(1)(c); 22-7-409(1.5); 22-1-129 and 22-1-125.5 of the Colorado Revised Statutes (C.R.S.).

1.00 Statement of Basis and Purpose.

The statutory basis for these emergency rules adopted on August 14, 2014 is found in 22-2-106(1)(a) and (c), State Board Duties; 22-2-107(1)(c), State Board Powers; 22-1-129(3) C.R.S., Instruction in Cardiopulmonary Resuscitation and the Use of Automated External Defibrillators; and 22-1-125.5(2), C.R.S., Requirement for Certification of Public School Athletic Coaches in Cardiopulmonary Resuscitation.

The Cardiopulmonary Resuscitation in Public Schools Act requires the State Board of Education to promulgate rules for the implementation of the program, including at a minimum: The process by which a local education provider may apply for and receive grant moneys pursuant to this section, including application requirements and deadlines; the number and amount of each grant and whether grant moneys will be awarded in the order applications are received or through some other method; the process for achieving a balanced distribution of grant moneys to applicants including rural, urban, and suburban local education providers; and procedures for monitoring a local education provider's compliance with the provisions of this section and specifically that moneys awarded pursuant to this section are used for reasonable costs associated with psychomotor-skills- based cardiopulmonary resuscitation training and training on the use of automated external defibrillators, including but not limited to training materials and the temporary employment of cardiopulmonary resuscitation instructors or other trainers.

The Requirement for Certification of Public School Athletic Coaches in Cardiopulmonary Resuscitation, 22-1-125.5(2), C.R.S., requires that the State Board shall promulgate rules concerning the coaching staff positions that are included in this requirement.

2.00 Definitions.

2.00 (1) Department: The Department of Education created and existing pursuant to section 24-1-115, C.R.S.

2.00 (2) Local Education Provider: A school district, a charter school authorized by a school district pursuant to part 1 of article 30.5 of this title, a charter school authorized by the state charter school institute pursuant to part 5 of article 30.5 of this title, or a board of cooperative services created and operating pursuant to article 5 of this title that operates one or more public schools.

2.00 (3) Psychomotor Skills Development: The use of hands-on practice that supports cognitive learning.

2.00 (4) State Board: The State Board of Education created and existing pursuant to Section 1 of Article IX of the State Constitution.

- 2.00 (5) Currently Certified in CPR: The person has completed training in cardiopulmonary resuscitation from a nationally recognized evidence- based certification program within the preceding two years.
- 2.00 (6) Coach: Head and assistant coaches of all athletic programs recognized by the Colorado High School Activities Association (CHSAA).
- 2.00 (7) Qualified Cardiopulmonary Instructors: Instructors that have successfully completed a nationally recognized instruction and have maintained current certification to teach cardiopulmonary resuscitation.

2.01 Grant awards for the Instruction of Cardiopulmonary Resuscitation to Students and Coaches.

Local education providers may apply for a grant or grants to provide instruction to students in any of grades nine through twelve and school staff in any of grades nine through twelve in cardiopulmonary resuscitation and the use of an automated external defibrillator. The instruction funded pursuant to section 22-1-129, C.R.S., must include a nationally recognized, psychomotor-skills-based instructional program that reflects current, national, evidence-based, emergency cardiovascular care guidelines for cardiopulmonary resuscitation and the use of an automated external defibrillator.

- 2.01 (1) Application Timeline. Subject to available appropriations, applications will be due to the Department on or after September 1 in each year that funding is available.
- 2.01 (2) Application Procedures. The Department will be the responsible agency for implementing the Instruction of Cardiopulmonary Resuscitation to Students and Coaches Grant Program. The Department will develop a Request for Proposal (RFP), pursuant to the Department's RFP process and pursuant to the requirements and timelines found in 22-1-129, C.R.S.
- 2.01 (3) Number and Amount of Grants. No more than 200 grants will be awarded and distribution of funds will be subject to available appropriations.
- 2.01 (4) Geographic Distribution. The Department will award grants through a balanced distribution of grant moneys to applicants including rural, urban and suburban local education providers.
- 2.01 (5) Reporting. In any fiscal year in which the general assembly makes an appropriation to the department for the purposes of the program, each education provider that receives a grant through the program will report to the Department of Education at the end of the school year. This report will include:
- 2.01 (5) (a) The program used for instruction;
 - 2.01 (5) (b) The number of classes taught;
 - 2.01 (5) (c) The number of students completing the instruction;
 - 2.01 (5) (d) The number of coaches certified in CPR; and
 - 2.01 (5) (e) An accounting of the funds used to provide these trainings.

2.02 Requirement for certification of public school athletic coaches in cardiopulmonary resuscitation and use of automated external defibrillators.

By January 1, 2015, all coaches currently employed by local education providers must have current certification in CPR. The program must also include training regarding the use of automated external defibrillators.

Editor's Notes**History**

Entire rule emer. rule eff. 08/13/2014.

Entire rule eff. 11/30/2014.